Sify Technologies Limited

Purchase Order

Supplier Address:
UNBORN NETWORKS PRIVATE LIMITED
139, Chinnapaneri thottam,
Appinayakkanpatti Village
KRISHNAGIRI

Tamil Nadu - 635207
India
GSTIN: 33AACCU0144N1ZF

Type	CLMS
PO Classification	DOMESTIC
Order No	202501217061
Order Date	03-FEB-26
Created By	MANOJ V VENUGOPAL. V
Revision No./Fusion Revision No.	0/0
Revision Date	
Revised By	MANOJ V VENUGOPAL. V
Currency	INR
Org/ SBU	011
PO Validity Date	31-MAR-26

Place of Supply

Bill To:	**Ship To**
Sify Technologies Limited, C/o Hotel Yashoda towers,,83,Bye pass road,opp.Bus Stand,, , Hosur, TN, India, 635109 PAN No: AAACS9032R GSTIN: 33AAACS9032R1ZY	Sify Technologies Limited, C/o Hotel Yashoda towers,,83,Bye pass road,opp.Bus Stand,, Hosur,TN,India,635109. PAN No: AAACS9032R

Customer Name	FEDEX EXPRESS TRANSPORTATION&SUPPLY CHAIN SERVICES INDIA PVT LTD	**PO Type**	New
Link Id	2026484153	**CLM ID**	70162
Capacity/Distance	4 KM	**Interface**	
Category	Dark Fiber	**Contract Period**	1 Year

A.End: Address: Sify Technologies Ltd,C/o Tvi Site ID:TATNHSR0369,C/o M.Suriyaprakash,No:1,Seven Houses Street,Opp Geetha Manjar,Nethaji Road,Hosur,TamilNadu - 635109

B.End Address: Plot No 180, Survey No 359 , Sipcot Industrial, Behind Chennai Silks,,Mookandapalli Villiage, Arasanantti Road, Hosur,,04,HOSUR, Tamil Nadu, 635126, IN

Commercial:

Part Code	Description	HSN/SAC Code	Amount
BCDOR&GPVT01	CUSTOMER-Domestic-One Time Charges-R and G Private Operator	**N**	20,000.00
BCDAR&GPVT01	CUSTOMER-Domestic-Annual Recurring Charges-R and G Private Operator	**N**	72,000.00
Total Amount			92,000.00
Rupees Ninety Two Thousand Only			

Remarks

Dark Fiber Connectivity PO

Please refer terms and conditions as per annexure.

S Ganesh

Signed By : SANKARARAMAN GANESH
FINANCE
SIFY TECHNOLOGIES LIMITED
Signed On : 2026-02-03
13:40:15 IST

Sify Technologies Limited

Annexure to Purchase Order No. 202501217061 Dt: 03-FEB-26

Binding Terms & Conditions to Purchase Order:

1. **General:**

SIFY TECHNOLOGIES LIMITED ("SIFY/Purchaser") hereby appoints the **Vendor ("**UNBORN NETWORKS PRIVATE LIMITED**")** on the terms and conditions hereinafter stated **("Purchase Order Terms and Conditions")** for the order placed by Sify ("Purchase Order") upon the Vendor for supply the materials, supplies, items or equipment **("Products")** and/or perform the services (the **"Services"**) as the case may be in terms of the Products or Services specified herein (The Purchase Order placed by Sify upon the Vendor along with the Purchase Order Terms and Conditions mentioned herein shall jointly be referred to as the **"P.O** 202501217061 **"**). Nothing in this Purchase Order Terms and Conditions shall be interpreted to prevent Sify from obtaining from any other third party, or providing to itself, any or all such Products or Services or from ceasing to engage the Vendor to provide such Product s and/or Services.
Within these terms and conditions Sify / Purchaser and the Vendor are hereinafter referred individually as **"Party"** and collectively as the **"Parties"** as the case may be.

2. **Order of Precedence:**

The Products or Services specified in any Purchase Order issued by Sify from time to time are subject to this following terms and conditions and are in addition to instructions and specifications on such Purchase Orders. 1) In the event the Vendor proposes or states any additional terms or modifies the terms and conditions of the Purchase Order which are contrary or contradictory to the terms and conditions herein (i.e. the Purchase Order Terms and Conditions) then in that event all such additions and modifications by the Vendor shall not be applicable and shall be void-ab-initio and the terms and conditions herein shall prevail unless specifically and mutually agreed by the Parties in writing as a special condition. 2) In the event if a written contract is already in existence between Purchaser and Vendor covering the purchase of the Products or Services covered hereby ("Said Contract"), then the terms and conditions of the Said Contract shall be in addition to the terms and conditions herein unless the same are in contradiction to each other in which event the conditions set-out herein shall prevail. 3) If the Purchase Order has any specific term(s) or condition(s) so mutually agreed to in writing then those specific terms of the Purchase Order will prevail over the terms and conditions stipulated hereunder. In the absence of a contract/agreement, the Purchase Order read with this modified Terms and Conditions herein constitutes the entire agreement between the Parties with regard to the subject matter and all written or oral communication vide email and/or oral representations, agreements and understandings between Sify and the Vendor which are not in consonance with the Said Contract and/or the P. O. shall not be applicable unless and until the same are reduced to writing and signed by the Parties hereto.

3. **PO Acceptance**:

The Vendor shall acknowledge the acceptance of this PO/WO within 48 hours of receipt, and failure to accept the same within the said timeline shall amount to deemed acceptance of the PO/WO along with all the terms and conditions mentioned herein.

4. **Pricing:**

The price agreed at the time when a Purchase Order is placed ("Price") is **inclusive** of all other costs and expenses of whatever nature unless otherwise stated in PO but **excludes** any applicable taxes which will be paid at actuals.

Price cannot be revised unless otherwise agreed in writing by the Parties.

The applicable taxes will be added in accordance with the applicable Laws. Unless otherwise agreed in writing by the Parties, the Price includes all performance required of the Vendor to perfect performance of a Contract and all expenses, charges and disbursements. The Buyer retains the right to request that the Vendor provide a guarantee and/or to agree to the Buyer partially withholding payment to guarantee the performance of a Purchase Order

Sify may set off any sums owed to Sify by Vendor against the price. Vendor's expenses for accommodation, travel and subsistence shall be reimbursed only if incurred in accordance with the Purchase Order and pre-approved by Sify to the Vendor in writing from time to time.
Sify will not accept any variations in the prices/rates or addition of any extra charges during the subsistence of the Order, unless mentioned in the PO.

5. **Special Terms**

a) **Link Upgradation:** If the PO is issued for upgradation then the existing link need to be terminated after upgradation. There is no separate disconnection letter will be issued. The Date of commission of upgraded services and the disconnection of the existing services cannot be overlap. The existing old capacity billing need to be get stopped in vendor system. In case of any excess billing, Vendor need to provide necessary Credit Note along with the regular invoices to process.

b) **Link Down gradation:** If the PO is issued for down gradation then it needs to be initiated immediately. Once the link got downgraded the existing link need to be terminated and there is no separate disconnection letter will be issued. The Date of downgraded services and the disconnection of the existing services cannot be overlap. The existing old capacity billing need to be get stopped in vendor system. In case of any excess billing, Vendor need to provide necessary Credit Note along with the regular invoices to process.

c) **Link Shifting:** If the PO is issued for shifting then after shifting the circuit the old address services need to be disconnected there is no separate disconnection letter will be issued. The Date of commission of shifted services and the disconnection of the existing location services cannot be overlap. The billing needs to be closed on the existing location in vendor system. In case of any excess billing, Vendor need to provide necessary Credit Note along with the regular invoices to process

d) **Vendor Name Change:** If the PO is issued for name change then existing vendor name need to change to new name for that vendor registration need to be done first. Further new PO's will be issued with existing service references with commercials. The effective date of name change is available in the PO. The invoices raised for the new entity name should capture the PO Reference. There is no change in the DOC part. IF any outstanding in the old entity name which should be raised in the old name only. Once the existing lock in period get completed in the combination of new or old vendor name then Sify has rights to disconnect the services with one month notification.

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SIFY TECHNOLOGIES LIMITED
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e) **RATE REVISION:** If the PO is issued for Rate Revision then invoices need to generated the revised rates on the effective date. If bills are already raised in old value, then necessary Credit Notes need to be raised along with the invoices. The earlier PO need to be replaced with the New PO Reference and the old PO need to be closed in the vendor billing system

f) **LINK RENEWAL:** If the PO is issued against the renewal of existing services. Then the PO will be given with the existing Capacity, Circuit ID & LMS reference. There is no commitment for further lock in period on the renewal period. Vendor has to mention the revised PO Reference for all their communication and billing. The invoices raised for the renewal period should contains the renewal PO reference along with the OLD PO reference. One-month disconnection notice is applicable for all the Rate Renewal PO's.

6. Link Acceptance:

Links will be accepted only based on the satisfactory of 24Hrs BERT and 30 minutes RFC2544 test which is mandatory.

7. Invoice Submission:

a) Vendor shall raise Invoice as per the Invoice template suggested by GST. All invoices must clearly indicate the GST Number of Sify Technologies Ltd. Vendor shall comply with GST Law, failing which the tax amount as per GST law along with the interest will be deducted from the invoice value at the time of payment.

b) Invoice/Challan must bear the PO No's & date reference. Details of the services rendered along with the quantity, rate and amount to be mentioned in the invoice. Wherever taxes are levied on the invoice, proper/correct tax registration numbers should be mentioned in the invoice. The invoice must be compliant to GST or else will be rejected.

c) Vendor shall send Sify an invoice for the price and applicable taxes marked with the PO number together with all required documentary evidence establishing proof of origin of deliverables as well as the destination for delivery. For lease line the DOC document or mail confirmation with the Sify authority need to be enclosed. For Dark Fiber services along with DOC confirmation OTDR need to be enclosed.

d) In case of OTC applicable as per the PO then the first bill should contain the OTC Charges and Recurring cost on prorate basis from DOC

e) Sify shall pay such invoices to Vendor with the payment terms "Quarterly" is set out in PO unless there has been any material breach of this order by Vendor in which case Sify shall be entitled to withhold the payment until the breach is rectified.

f) Vendor must submit all the invoices along with the supporting documents certified by authorized representative of Sify on completion of the task or services. Sify is entitled to reject any invoice or documents if it is found insufficient, invalid, defective, wrong, incomplete, etc. Sify is entitled to deduct/adjust the excess or wrong payments made to the Vendor from the amounts payable to the Vendor.

g) If Vendor raises incorrect charges or taxes to Sify, Vendor shall repay such charges or taxes amounts to Sify together with related interest, penalties and costs within 7 days of the error being identified.

h) In the event that Sify is required by law and /or Government authority to deduct withholding tax or any other amount including without limitation employees provident fund or other statutory dues applicable to Vendor, Sify shall deduct such amount from the price and Sify shall i) pay the price less withholding tax and other amounts required to be deducted by law and /or authority and ii) provide evidence to Vendor that it has passed the withholding tax on to the relevant authority.

i) It is the responsibility of the Vendor to bring to the notice of Sify if any payments were made by Sify on account of wrong, invalid, defective invoice certified and paid by Sify. Vendor warrants that it is tax resident in its country of incorporation.

j) In the case of IGST supply, the place of supply and state of supply on the invoice to be mentioned. In case the Vendor/vendor does not upload his return and input tax credit is not availed as a result, all future vendor payments will be blocked till such invoice is uploaded.

k) The invoice shall be issued not later than 7 days (or mutually agreed date in writing) from the date of completion of such taxable service, failing which Vendor shall not make SIFY responsible for any subsequent delays in payments. Invoice issued by the Vendor shall carry the signature of the Authorized signatory of Vendor and respective regional approval. Vendor should submit at least 2 copies of Invoices, One Invoice copy (Duplicate / Transporter copy) should be sent to Bill to Location as per PO along with the material & another copy of Original Invoice with acknowledgement, Seal & signature to be sent to the below address.

Bandwidth – Commercial Team,
Sify Technologies Ltd,
Tidel Park, 2nd Floor,
4. Rajiv Gandhi Salai, Taramani,
Chennai-600113.

All Payment related queries to be addressed to bwbill.enquiry@sifycorp.com

1. Sify has also creating vendor portal for PO's & Invoice submission. Vendors has to upload their invoices against each PO regularly on time and send the originals to above address. This need to strictly followed to avoid reconciliation. The Portal will provide the status and payment details of the invoices submitted with Sify. Once the PORTAL is ready, Sify will send necessary communication to all vendors.

PO Validity:

PO is valid only for 60 days from the PO date. Within the period the links to be get commissioned, beyond which it will be auto closed in our system and invoices raised after that will not be processed. In case of any delay in delivery, the Vendor should make a written request or mail for PO extension at least 7 days in advance before PO expiry and the same shall be sent to infrapo.enquiry@sifycorp.com for backbone/infrastructure Links. In case of Customer add customerpo.enquiry@sifycorp.com.

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SIFY TECHNOLOGIES LIMITED
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8. Delivery & Performance:

i) Vendor shall supply the deliverables and perform the services strictly in accordance with this order.
ii) The SLA need to be followed as per the Agreement signed between Sify with vendor. In absence of agreement vendor has to meet the SLA as specified and informed by Sify.
iii) If vendor unable to meet the SLA the necessary down time need to be given in the form of Credit Note along with the Invoices. However, If vendor is unable to meet the SLA for 2 months then Sify has the rights to disconnect the services without any commercial impact.
iv) Vendor shall comply with all the reasonable instructions provided by Sify from time to time in writing.
v) Vendor shall deliver the deliverables duty/tax paid. Risk and title in deliverables/services shall pass on to Sify only after Sify accepting the delivery in good faith.
vi) All the deliverables/Services under this order shall be delivered at place/places as specified in the order or designated by Sify within the time period specified in the order. Time shall be the essence.
vii) All the deliverables shall be securely packed against theft & damage during transportation and such packaging shall confirm to the specific instructions of Sify, if any.
viii) The Vendor shall ensure that the transportation of deliverables complies with the applicable state, national and international regulatory and safety requirements. If the dispatches are undertaken by freight forwarders, an extra copy of G.C.. Note, airway bill, bill of lading or freight note must accompany the Vendor's invoice/delivery challan, depending on the mode of transportation. The copy shall bear Sify's name as consignee or if it is in the name of Vendor, necessary endorsement must be made in Sify's favour.
ix) Sify shall not be responsible or liable for any deliverables/services that exceed the quantity ordered by Sify or do not comply with this order.
x) The quality of material supplied shall correspond to the manufacturer's specification and performance parameters, failing which the same shall be liable to be rejected. Such rejected item shall be returned to the Vendor at Vendor risk and cost as to freight, packing and forwarding and other incidental expenses.
xi) Deliveries shall be processed according to Sify' instructions. All goods must be properly packed. Partial deliveries will be accepted only with Sify' advance agreement in writing. Terms of delivery apply from the date that the Order was placed.
xii) All supply & services along with project to be completed in all aspects with in the specified time. In the event that the Vendor fails to deliver an Order within the specified time after the Order was placed, Sify shall have the right to cancel such Order without any obligation on the part of Sify.
xiii) In the event that goods are delivered to Sify in defective condition and/or do not meet the specifications provided to the Vendor, Sify shall have the right to choose from among the following remedies: (i) return said goods to the Vendor at the Vendor's sole expense for repair or replacement; (ii) repair the defect itself at the Vendor's sole expense and deduct such repair costs from the original price agreed for the said goods; or (iii) exercise any and all other remedies available to it at law or in equity.
xiv) In the event Sify cannot make use of the goods delivered due to one or more defects, then, in addition to all other rights ascribed to it in these Terms and Conditions, Sify shall have the right to charge the Vendor 1% of the total price of the Order for the first week or portion thereof past the delivery date, and an additional 1% for each additional week or portion thereof past the delivery date. Said charges shall cease being levied against the Vendor, at the earlier of: (i) receipt by Sify of repaired or replaced goods; or (ii) said charges reach, in total, 5% of the total price of the Order. In the event that the Order is cancelled due to defective goods, Sify shall have the right to charge up to 15% of the total price of the Order, in addition to any and all other rights and/or remedies available to it in these Terms and Conditions or at law or in equity.

9. Packing:

The materials shall be packed securely to avoid transit damage. Any damage or breakage in transit due to faulty packing would be Vendor's responsibility. Damaged items should be replaced immediately.

10. Insurance

The Vendor shall ensure the service, or the supply are adequately covered with all the applicable Insurance including Comprehensive All Risk Policy, Policy to cover workmen compensation, Third Party Liability etc, at Vendor cost.

11. Force Majeure:

Failure or omission to carry out or observe any of the stipulations or conditions of the P.O. shall not give rise to any claim or be deemed breach of the contract if the same has arisen due to any of the following causes: Transportation embargo, an act of GOD, fire, earthquake, floods, war, strike, lockout, labor troubles etc. or any other cause beyond your control.

12. Safety:

Vendor shall not cause any damage to the interiors or assets of Sify or its customers. If any damage is caused, the same shall be repaired and replaced at Vendor cost. All safety precautions shall be taken care during the execution of work and safety rules shall be strictly complied with and the Vendor shall be responsible for the same.

13. Labour Regulations:

All formalities as to labour regulations such as registration with department of labour, compliance with statutory rules and regulations of organizations such as employer's provident funds, ESI etc shall be followed and complied well in time. We shall be kept indemnified from any liabilities on these accounts

14. Dispute Resolution & Jurisdiction:

Any dispute or issues or claims arising out of or in connection with this Order which is not resolved including any question regarding its existence, validity or termination, shall be referred to and finally resolved by the sole Arbitrator appointed by Sify in accordance with the Arbitration and Conciliation Act, 1996, as amended from time to time. The seat of and venue for arbitration shall be Chennai and the language of arbitration shall be English. The award rendered under arbitration shall be final and binding on the Parties. The Parties shall bear their respective costs of the arbitration proceedings.
This Order will be governed by and construed in accordance with the laws of India and each party irrevocably submits to the exclusive jurisdiction of the courts in Chennai.

15. Continuity of Services:

I. Vendor acknowledges that the timely and complete performance of its obligations pursuant to this Order is critical to the business and operations of Sify. The Vendor acknowledges that time is the essence of the contract/PO.

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II. Vendor to ensure the compliance of RFP and Solution document. Any material which is not highlighted as Sify's scope will be borne by vendor. All consumables as required during installation / testing will be vendor's scope. All compliance, necessary approvals (as required in RFP) need to be managed and confirmed by vendors.

III. The BOQ attached is indicative in nature and can be treated as guideline. The makes, models to be used would adhere to RFP requirements and indicated by Sify during the various discussions. The same shall not be deviated without the explicit written confirmation from Sify Project Manager.

16. Non-Disclosure Agreement (NDA):

The Vendor shall maintain strict confidentiality of all the information contained in the SIFY's PO / with respect to the information disclosed to the Vendor and ensure that the same is not disclosed to anybody other than the authorized representative of SIFY or to any person other than a person directly employed or engaged by the Vendor in the performance of the supply / services, without the prior written consent of SIFY. Non-compliance of this clause would be deemed to be a breach of the Terms and Conditions under this PO/WO and SIFY shall be within its rights to take appropriate legal action against this breach by the Vendor, including the right to terminate the PO for breach of this clause.

Vendor shall conduct commercially reasonable recruitment and security vetting procedures in relation to each such individual including, at a minimum, by verifying such individual's identity check, background verification and criminal records on the individual it employs or engages in connection with the performance of its obligations under this purchase order.

On request by Sify, Vendor shall provide written evidence, in form and substance reasonably acceptable to Sify, of the completion of the Identity Check, background Verification & screening requirements for the individuals deployed by the Service Provider.

In the event that Vendor detects any incident or activity which constitutes or results in breach of compliance or Laws with respect to any matter relating to this purchase order, Service Provider will immediately notify Sify.
The Vendor shall maintain on the Site at all times a sufficient work force to carry out its obligations in an efficient and timely manner. The Vendor shall employ only competent, skilled, reliable and honest workmen who will work in harmony with other workmen on the Site. All persons furnished by Vendor shall be deemed Vendor's employees or agents, and Vendor shall comply with all applicable statutes.

17. Subcontracting:

The Vendor shall not be entitled without SIFY's written consent to assign or transfer to a third party all or part of the benefits or obligations of this Purchase Order. SIFY may assign rights and obligations under this Purchase Order to any third party by giving intimation to the Vendor to that effect.

18. Termination:

a) If the Vendor materially breaches this order (eg. Vendor fails to deliver the deliverables/service on time or deliverables/services are not as per the terms of the Order) and fails to remedy the breach within 7 days of receipt of intimation of the breach, Sify may terminate this Order or reject the services/deliverables immediately without notice to the Vendor. Additionally, Vendor shall repay within 7 days any part of the price
b) Which has been paid and Sify may return any deliverables to Vendor at Vendors expense.

c) If vendor is not able to meet the SLA as per Agreement (or) in absence of agreement, vendor has to meet the SLA as per committed terms specified in the mail communication / PO. If vendor unable to meet the SLA for 2 months then Sify has the rights to disconnect the services without commercial impact.

d) Notwithstanding any other terms & conditions stipulated hereunder, Sify is entitled to terminate the Purchase Order at any time whether wholly or in part without assigning any reasons. In such circumstances Sify may pay a reasonable proportion of the price for any deliverables or services if provided as per the requirements of Sify and any demonstrable cost reasonably incurred prior to termination.

19. Intellectual Property Rights:

i. Vendor grants to Sify free of charge the unrestricted license to use Vendor's pre-existing IPR as necessary for Sify to receive, hold and make use of the deliverables and the services and otherwise to fully and freely exploit any new IPR, which shall include without limitation, the right to a) make back-up copies of any deliverable, and b) modify or adapt any deliverable to correct any errors or improve operations for interoperability.
ii. Vendor shall notify Sify in writing if it wishes to make use of third party IPR and shall obtain all necessary permissions in respect of such Third Party IPR to enable it to perform its obligations under this order and to allow Sify on an unrestricted and free of charge basis to receive, hold and make use of the deliverables and the services and otherwise to fully and freely exploit any new IPR.
iii. Vendor shall at Sify's reasonable request and cost deposit all source code relating to software necessary for the full enjoyment of the deliverables. Vendor shall not make use of any open source software in a deliverable without Sify's Prior written agreement.
iv. All new IPR shall be exclusively owned by Sify and Vendor irrevocably and unconditionally assigns to Sify all right, title and interest in and to the new IPR.
v. Where a threat or claim of infringement of IPR jeopardizes Sify's ability to fully and freely receive, hold and make use of any deliverables, Vendor shall either obtain appropriate licenses or otherwise supply redesigned deliverables to enable Sify continued exploitation.

20. Others:

i. Sify reserves right to procure any or similar deliverables/Services from any other source or third party vendor.
ii. Vendor shall insure against all foreseeable risks and liabilities which it may face in relation to this Order.
iii. All deliverables/Services covered under this Order are subject to these terms except where Vendor and Sify had entered into a written contract under which this Order is issued, in which case the terms of that contract will take precedence.
iv. Sify has placed this order on **M/s.** UNBORN NETWORKS PRIVATE LIMITED Including the gist and the spirit of the project. **M/s.** UNBORN NETWORKS PRIVATE LIMITED **.** Would ensure that the RFP /Tender specifications, IS Codes, norms & guidelines are met keeping the spirit of the actual requirement in mind. There would be requirements which would come up due to site conditions and site modifications due to practical limitations/challenges, raw material price fluctuations etc., which **M/s.** UNBORN NETWORKS PRIVATE

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LIMITED**.** Needs to manage as part of scope.

v. **"M/s.** UNBORN NETWORKS PRIVATE LIMITED hereby represents that no unethical means were adopted nor were any attempts made with any person directly or indirectly for influencing or attempting to influence an officer or employee of Sify Technologies Limited or on its behalf for the purpose of winning this engagement/deal and entering in to this agreement. Sify Technologies Limited is authorized to impose penalty as it deems fit and/or to terminate the Agreement with immediate effect in the event of discovery of any breach of this representation by **M/s.** UNBORN NETWORKS PRIVATE LIMITED**.** This is in addition to any other rights which Sify Technologies Limited would have as per law".

21. Change in law:

In the event of change in the law post signing of contract/PO, Sify and Vendor agree to renegotiate the contract/PO price.

22. Penalty:

i. In case any credit, refund of other benefit is denied or delayed to Sify or its customer due to any non-compliance by the Vendor (such as failure to upload the details of the sale of the GSTN portal, failure to pay GST to the government) or due to non-furnishing or furnishing of incorrect or incomplete documents by the Vendor, the Vendor would reimburse Sify the loss to Sify including, but not limited to, the tax loss, interest and penalty.
ii. Sify shall have the right to charge up to 5% of the total price of the Order in addition to any and all other rights and/or remedies available to it in these terms and conditions or at law or in equity.
iii. Vendor has to meet the SLA on monthly / Quarterly basis as per the agreement or PO or mail communication. Necessary down time Credit need to be provided in the form of credit note along with the invoices. In case of non-submission of credit notes then Sify has rights to raise the debit note to adjust the same.
iv. In the event of non-compliance either for quality, defective or do not meet the specifications or fit for use, the Vendor will refund the entire money with 18% interest back to Sify.

23. Indemnity:

i. Vendor indemnifies Sify, its respective directors and employees, against all losses, liabilities, damages, claims and costs relating to this Order in connection with a) any alleged or actual infringement or IPR by or relating to the deliverables or services; b) any alleged or actual infringement by or on behalf of Vendor of applicable data protection or confidentiality obligations; c) any damage to property and any injury to or death of any person arising from Vendor's default, negligence, act or omission.
ii. The Vendor shall at all times indemnify Sify against all claims which may accrue including liability for payment of any workman's compensation and/or statutory compensation on account of accident or death of any person entering or working on the premises of Sify for and on behalf of the Vendor for any purpose including but not limited to delivery, inspection, repairs, estimation of material or work done against an Order.

24. Limitation of Liability:

Except where liability cannot be lawfully excluded, each party's maximum aggregate liability in relation to any other claims relation to this order shall be limited to the greater of i) the PO Value or ii) value of the agreement to which this PO relates; or iii) INR 5,00,000/-.

25. Sify Policies:

i. Vendor shall respect Sify's business principles and shall comply with sify's policies, including without limitation, the code of ethical purchasing, anti-bribery, Data Protection, etc. It is the duty of our Vendors, contractors and employees to report dishonesty, corruption, fraud, labour and human rights concerns, unethical behaviour and environmental damage.

ii. Bribery & Corruption: Vendor shall comply with all applicable law relating to bribery and corruption and shall not do, or omit to do, any act that will cause Sify to be in breach of any such applicable law, and in doing so; 1) shall not give or receive any bribes, including in relation to any public official; and ii) shall maintain an effective anti-bribery compliance regime, that monitors compliance and detects violations. If Vendor breaches the obligation in this clause it shall indemnify Sify against any costs, claims and liabilities arising as a result of the breach.

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